

**JUSTIFICATION AND APPROVAL (J&A)
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. **Contracting Activity:** Department of the Navy, Military Sealift Command (MSC) Norfolk
2. **Description of the Action Being Approved:** Award of a purchase order on a sole source basis to the Original Equipment Manufacturer (OEM) sole representative JA Moody. JA Moody is the only vendor who has access to the required drawings, manuals, and technical knowledge to supply the proper regulating valves from Metrex for the upcoming availability for the USNS MERCY (T-AH 19).
3. **Description of Supply Services:** Provide regulating sea valves from the OEM Metrex via their sole authorized distributor to ensure the items are available for the necessary repair periods. The estimated dollar value is [REDACTED] which will be funded utilizing fiscal year 2026 Operations and Maintenance, Navy (O&M, N), funds.
4. **Statutory Authority Permitting Other Than Full and Open Competition:** 10 U.S.C. 3204(a)(1) Brand Name requirement, and no other brand name supplies, will satisfy the agency requirements.
5. **Rationale Justifying Use of Cited Authority:** MSC requires these parts from JA Moody, the OEM authorized distribution source, because it is the only source that can produce conforming parts to meet the technical needs and requirements of MSC to repair the USNS MERCY (T-AH 19). Using OEM authorized source parts will ensure the vessel maintains operational status and ensures USNS MERCY (T-AH 19) is able to complete all missions as required. These parts— regulating sea valves— are a direct replacement for the current regulating sea valves installed on the USNS MERCY (T-AH 19). MSC maintains both current, but also class configuration by using this one-to-one replacement of the sea valves as these are direct replacements. This requirement ensures that if the vessel requires immediate replacement of any of the six requested valves, the USNS MERCY (T-AH 19) can provide the exact item for replacement. The current procurement consists of critical systems on the USNS MERCY (T-AH 19) ships to include the sea water valves as installed. Without functioning regulating sea valves, the vessel would enter C-4 status(CASREP 4) which would require emergency work, and if not fixed, would prevent the vessel from sailing. Lack of correct and timely procurement will impact ship readiness and assigned missions for the USNS MERCY (T-AH 19). This type of equipment is categorized as “critical equipment”, which has several aspects; (1) equipment failure would affect operation of a key readiness system, including, damage control, firefighting capability and safety equipment, restricting the ship to port, unable to perform its required missions; (2) Safety Management Systems (SMS) number 10.6-002-ALL lists the propulsion and mission and safety systems – including the OEM parts described here – as critical equipment; (3) MSC is directed to only use OEM parts on this equipment aboard MSC Fleet Vessels per COMSCINST 4490.4; (4) regulatory bodies such as United States Coast Guard and ABS only recognize servicing and repairs of this type of shipboard equipment by an authorized OEM representative. In addition, as the OEM representative, JA Moody has access to software and technical data / drawings, which no other entity has access to in order to properly repair and maintain the equipment. In addition to the ABS regulatory prohibition on receiving service and repairs from an unauthorized representative, MSC does not have the manufacturing and technical information required to evaluate and determine whether non-OEM components and replacement parts offered are equivalent to OEM components and replacement parts. MSC is not aware of any current non-OEMs capable of substituting JA Moody. Lastly, MSC does not have data rights for the parts, thus cannot provide the protected proprietary information for these parts to other competitors.

6. **Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable:** JA Moody is a well-established OEM representative, with a signed mutual agreement document which has been supplied to MSC, that shows Metrex only sells directly to MSC via JA Moody. MSC perpetually seeks submissions from non-OEM contractors for consideration of qualification of their parts and/or services as an acceptable alternative to the OEM at [https://www.msc.usff.navy.mil/Business- Opportunities/Contracts/Qualification-for-Items-Critical-to-Shipboard-Safety-on-MSCVessels/](https://www.msc.usff.navy.mil/Business-Opportunities/Contracts/Qualification-for-Items-Critical-to-Shipboard-Safety-on-MSCVessels/). The Government intends to post a pre-solicitation notice along with this justification at the Government Point of Entry with the intent of awarding a firm-fixed-price purchase order to JA Moody upon submission of a technically acceptable quote.

7. Determination of Fair and Reasonable Cost: The Contracting Officer has determined the anticipated cost to the Government of the supplies covered by this J&A will be fair and reasonable.

8. Actions to Removed Barriers to Future Competition: For reasons set forth in paragraph 5, MSC has no plans at this time to allow for non-OEM suppliers in future contracts or purchase orders for the types of supplies covered by this document. If another potential source emerges, MSC will assess whether competition for future requirements is feasible.

CERTIFICATION AND APPROVALS

